Brazoria County District Court

Cause No. 2025-CV-0026

Sarah Walker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-26-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations expressly admitted below, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations of Plaintiff's Original Petition and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and in the alternative whree necessary, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligence proximately caused or contributed to the collision, and under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, or barred if that percentage exceeds fifty percent. Second, the collision and the injuries claimed were caused by a sudden emergency not of Defendant's making, or by the acts or omissions of a third party over whom Defendant had no control, and such conduct constitutes a new and independent cause of the damages alleged. Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by failing to seek or continue appropriate treatment, and any recovery must be reduced accordingly.